

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 18, 2026 TIME: 8:30 A.M.

GM opposes, arguing that the motion is moot since the only active cause action remaining is fraudulent inducement-concealment, which is not affected by any decision in *Price*; that the motion does not comply with the California Rules of Court, rule 3.1306; and that plaintiff's motion fails to meet the burden of establishing that the balance of equities favors a stay. GM provides a declaration from its counsel that states that plaintiff's law firm initiated 958 Song-Beverly actions between January 1, 2025 and May 15, 2026. He estimates that approximately 203 cases implicated either the statute of repose, statute of limitations, or both under the new time limits of Code of Civil Procedure section 871.21. (Decl. of Hightower at ¶¶ 3, 4.) "Since January 1, 2025, Defendant GM has devoted significant time, effort, and resources to exercise every available tool to meet the statutory timelines of the new Song-Beverly amendments in the matters SLP has initiated. A stay of those proceedings would prejudice GM." (Decl. of Hightower at ¶ 10.)

II. LEGAL STANDARDS

Plaintiff moves for a stay pending a decision in the Second District Court of Appeals involving a different case but related to this Court's interpretation of the new statute of limitations and repose which now applies in Song-Beverly cases. The Court does not find that plaintiff has made a sufficient showing that staying this action would be in the interests of justice or promote judicial efficiency. "[T]he suppliant for a stay must make out a clear case of hardship or inequity in being required to go forward, if there is even a fair possibility that the stay for which he prays will work damage to some one else. Only in rare circumstances will a litigant in one cause be compelled to stand aside while a litigant in another settles the rule of law that will define the rights of both." (*Landis v. N. Am. Co.* (1936) 299 U.S. 248, 255.) This Court made its rulings on GM's demurrers and does not find that staying this action pending the eventual – but potentially long-delayed – decision in the *Price* case would promote judicial efficiency.

No. 24CV03485

BOSWELL-JEUNG v. FCA, US, LLC

**DEFENDANTS' MOTION FOR TERMINATING AND/OR EVIDENTIARY
SANCTIONS AND MONETARY SANCTIONS**

The motion for terminating and evidentiary sanctions is denied. The motion for monetary sanctions is granted.

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On April 14, 2026, this Court adopted its tentative ruling, granting defendants' motion to compel plaintiff's deposition. The parties were ordered to meet and confer and set a date for plaintiff's deposition, which was to occur within 30 days from April 14, 2026.

Defendants bring this motion for terminating sanctions, or in the alternative, evidentiary sanctions prohibiting plaintiff from testifying at trial, as well as monetary sanctions against plaintiff and her counsel in the amount of \$2,660.00. The motion references a declaration from defendants' attorney Felicia Borrero, but that declaration does not appear to have been filed with the Court. Defendants assert in their memorandum of points and authorities that after the Court's order granting the motion to compel, the parties agreed to a deposition date of May 7, 2026. Plaintiff then objected; the parties agreed to a new deposition date of July 3, 2026. Plaintiff's counsel served an objection but stated plaintiff would be produced for deposition on that date; plaintiff, however, did not appear on July 3, 2026, and a certificate of nonappearance was taken.

In opposition, plaintiff does not dispute that she failed to appear on January 13, March 20, May 7, and July 3, 2026 for her deposition. No reason is provided for her failure to appear. Plaintiff's counsel also acknowledges that their office failed to respond to two requests for available dates that defense counsel sent in July and August. Plaintiff asserts she has offered deposition dates of August 14, 2026, August 17, 2026, and August 18, 2026 for her deposition. (Decl. of Rucker at ¶ 8.)

Given that plaintiff has failed to comply with only one prior order, the Court is not inclined to grant terminating and/or evidentiary sanctions at this time. Disobeying a court's prior discovery order is a misuse of discovery for which sanctions may be imposed. (Code of Civ. Proc. § 2023.010, subd. (g).) "[A] more severe sanction is disfavored if a lesser sanction is available. [Citation.]" (*City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 63.) "Before imposing a 'terminating' sanction, courts should usually grant lesser sanctions" (Weil & Brown *Civ. Proc. Before Trial* (TRG 2025) §8:2235.) "The discovery statutes thus 'evinced an incremental approach to discovery sanctions, *starting* with monetary sanctions and *ending* with the ultimate sanction of termination.' [Citation.]" (*Lopez v. Watchtower Bible Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604.)

With these parameters in mind, the Court will award monetary sanctions against plaintiff and her counsel in the amount of \$1,330.00, to be paid within 20 days from the date of this hearing. The Court is awarding half of the amount sought since FCA failed to provide any evidence in support of its motion, forcing the Court to resort to plaintiff's own evidence. The Court has not previously levied monetary sanctions against plaintiff or her counsel for failure to comply with a discovery order. The Court orders plaintiff's deposition to take place within 14 days from the date of this hearing. If plaintiff fails to appear, the Court will strongly consider evidentiary and/or terminating sanctions upon a noticed motion.

LAW AND MOTION TENTATIVE RULINGS
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No. 26CV00483

FEATHERS v. DLA PIPER LLP, et al.

DEFENDANTS' DEMURRER TO COMPLAINT

The demurrer is sustained without leave to amend. Plaintiff's complaint is time-barred and there is no reasonable possibility that the defects can be cured by amendment. (*Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037.)

Self-represented plaintiff Mark Feathers filed his first amended complaint ("FAC") on February 17, 2026, alleging a single cause of action for professional negligence against defendants DLA Piper LLP and Nicolas Morgan, Esq. Plaintiff claims he hired defendants in 2011 to advise and defend him in a Securities and Exchange Commission ("SEC") investigation, and later 2012 enforcement action, but they failed to properly assess and respond so he could avoid the ex parte TRO that froze his assets. He alleges defendants failed to use the six-month period between December 2011 and June 2012 to assess and avoid consequences of a TRO, and breached their duty by withdrawing from his representation when the TRO was issued. (FAC ¶¶ 15-34, 37.)

Defendants argue the FAC is time-barred by statute. (Code Civ. Proc., § 340.6 ["An action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first."].) Defendants contend plaintiff's claim is barred by both the one-year and four-year limitations periods since their allegedly negligent conduct occurred on or before June 27, 2012, and plaintiff did not file until February 2026. They also argue he is not entitled to tolling of those periods.

Plaintiff contends he lacked access to records, funding and counsel at the time of the TRO which prevented his discovery of the wrongdoing, and that those allegations preclude sustaining a demurrer.

Defendants object to plaintiff's multiple filings (opposition and supplemental) but since they were filed months before the hearing, providing defendants with sufficient time to respond, the Court will consider all pleadings filed in this matter.

I. LEGAL STANDARDS

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the